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Case Number: 25STCV04339 Hearing Date: June 23, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE

RULING

JOSE ALBERTO MUNOZ,

Plaintiff,

v.

GENERAL MOTORS LLC, et al.,

Defendants.

Case No:

25STCV04339

Hearing Date: June 23, 2026

Calendar Number: 12

Defendant General Motors LLC moves for summary judgment or, alternatively, summary adjudication of the first, second, third, fourth, and fifth causes of action in the operative First Amended Complaint.

The Court GRANTS Defendant's motion for summary judgment.

Background

This action arises from the alleged purchase and sale of a defective 2021 Chevrolet Tahoe ("the "Subject Vehicle").

On February 13, 2025, Plaintiff Jose Alberto Munoz ("Plaintiff") filed a complaint against defendants General Motors LLC ("Defendant"), City Chevrolet of San Diego ("City Chevrolet"), and DOES 1-10, inclusive.

On March 28, 2025, Plaintiff filed the operative First Amended Complaint alleging causes of action for: (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; (5) Violation of the Magnuson-Moss Warranty Act; (6) Violation of Uniform Commercial Code; and (7) Violation of the Consumer Legal Remedies Act.

On April 8, 2025, at the request of Plaintiff, the Court dismissed defendant City Chevrolet from this action. (04/08/25 Request for Dismissal at

p. 1.)

On May 28, 2025, at the request of Plaintiff, the Court

dismissed the seventh cause of action for Violation of the Consumer Legal

Remedies Act. (05/28/25 Request for Dismissal at p. 1.)

On June 27, 2025, defendant Capitol City Chevrolet dba

Mission Bay Chevrolet filed an answer. Also, on such date, Defendant filed an answer.

On April 1, 2026, Defendant filed and served the instant

motion for summary judgment or, in the alternative, summary adjudication.

On June 3, 2026, Plaintiff filed an opposition.

On June 12, 2026, Defendant replied.

Request for Judicial Notice

The

Court GRANTS Defendant's request for judicial notice. (Evid. Code §§ 452, 453.)

Legal Standard

In moving for summary judgment, a "defendant .

. . has met his or her burden of showing that a cause of action has no merit if

the party has shown that one or more elements of the cause of action, even if

not separately pleaded, cannot be established, or that there is a complete

defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) This

burden may be satisfied by presenting “evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence” to prove their cause of action against the defendant. (*Aguilar v.*

Atlantic Richfield Co. (2001) 25 Cal.4th 826, 855.) A party cannot satisfy this burden merely by arguing that Plaintiff lacks evidence. (*Id.*

at 854 [“Summary judgment law in this state, however, continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.”].)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense

thereto. (Code Civ. Proc., § 437c, subd. (p)(2).) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th 826,

850.) The plaintiff “shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code

Civ. Proc., § 437c, subd. (p)(2).)

“The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Id. § 437c(c).)

In making this consideration, “the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 838; see also D’Amico v. Bd. of Med. Exam’rs (1974) 11 Cal.3d 1, 20 [“In examining the sufficiency of affidavits filed in connection with the motion, the affidavits of the moving party are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the

motion. Such summary procedure is drastic and should be used with caution so that it does not become a substitute for the open trial method of determining facts.”.) “[T]he plaintiff must produce substantial responsive evidence sufficient to establish a triable issue of material fact on the merits.” (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) “Motions for summary adjudication are procedurally identical to motions for summary judgment.” (Dunn v. County of Santa Barbara (2006) 135 Cal.App.4th 1281, 1290.)

Preliminary Issues

The Court notes that there are procedural defects concerning the opposition papers of Plaintiff.

Plaintiff’s Defective Separate Statement

“The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed.” (Code Civ. Proc., § 437c, subd. (b)(3) [italics added].) “The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence.” (Code Civ. Proc., § 437c, subd. (b)(3).) “Failure to comply with this requirement of a separate statement

may constitute a sufficient ground, in the court's discretion, for granting the motion." (Code Civ. Proc., § 437c, subd. (b)(3).)

A separate statement in opposition to a motion for summary

judgment or motion for summary adjudication "must unequivocally state whether

that fact is disputed or undisputed." (Cal. Rules of Court, Rule 3.1350, subd.

(f)(2) [internal quotations omitted].) "Citation to the evidence in

support of the position that a fact is controverted must include reference to

the exhibit, title, page, and line numbers." (Cal. Rules of Court, Rule 3.1350,

subd. (f)(2).) "The separate statement is not merely a technical requirement, it

is an indispensable part of the summary judgment or adjudication process." (Whitehead

v. Habig (2008) 163 Cal.App.4th 896, 902.) "Separate statements are

required . . . to afford due process to opposing parties and to permit trial

courts to expeditiously review complex motions for . . . summary judgment to

determine quickly and efficiently whether material facts are disputed." (Ibid.)

The Court has reviewed the separate statement of Plaintiff

filed in opposition to the motion. The Court notes that Plaintiff has only disputed

in part Defendant's Undisputed Material Facts Nos. 5, 6, 8, 14, 15. Plaintiff

was required to unequivocally dispute the aforementioned material facts

pursuant to CRC 3.1350(f)(2). Also, in response to undisputed material fact

number 13, Plaintiff has failed to cite any evidence. Such response is

deficient under CRC 3.1350. Accordingly, the Court will treat such facts as undisputed.

However, as will be explained below, the declaration of Plaintiff (which is the sole declaration filed in support of the opposition), is not properly executed under Code Civ. Proc. § 2015.5.

Plaintiff's Declaration is Non-Compliant with CCP § 2015.5

Although not raised as an argument on reply, upon review of the declaration of Plaintiff submitted in support of the opposition, the Court finds that such declaration is not signed by Plaintiff and fails to set forth the date of execution. (See Declaration of Jose Alberto Munoz Filed June 3, 2026 at p. 4:3-7.) As of Wednesday, June 17, 2026, as of 4:16 P.M., Plaintiff has not filed a signed declaration in support of the opposition.

If a declaration or verification is “executed within this state, [the declaration or verification must] state[] the date and place of execution.” (Code Civ. Proc. § 2015.5.) If a declaration or verification is “executed at any place, within or without this state” then such declaration or verification must set forth “the date of execution and that it is so certified or declared under the laws of the State of California.” (Code Civ. Proc. § 2015.5.) A declaration or verification that is not compliant

with Code Civ. Proc. § 2015.5 has no evidentiary value. (ViaView, Inc.

v. Retzlaff (2016) 1 Cal.App.5th 198, 217.)

Here, the Court finds that the declaration of Plaintiff

in does not comply with Code Civ. Proc. § 2015.5 as it is not signed by

Plaintiff and fails to set forth the date such declaration was executed. As

such, the declaration of Plaintiff has no evidentiary value under ViaView,

Inc., supra, 1 Cal.App.5th 198, 217. The Court therefore

will not consider the declaration of Plaintiff (or the exhibits attached

thereto) in support of the opposition. Thus, Plaintiff has no admissible

evidence in support of the opposition.

Accordingly, due to the improperly executed declaration of

Plaintiff, the Court deems each fact presented in Defendant's separate

statement as undisputed.

Plaintiff's Concessions

On reply, Defendant correctly asserts that Plaintiff does

not oppose summary adjudication of the first, second, and third causes of

action and such claims should be dismissed. (Reply at pp. 2-3.) The opposition

argues, inter alia, that: (1) Defendant cannot obtain summary judgment

as there is a triable issue of fact as to the fourth cause of action; (2)

triable issues of material fact preclude summary adjudication of the fourth

cause of action; and (3) Defendant's derivative Magnuson-Moss Warranty argument

fails because a state-law warranty claim survives.

The Court finds that Plaintiff has conceded to the argument

that summary adjudication is appropriate as to the first, second, and third

causes of action as "[c]ontentions are waived when a party fails to support

them with reasoned argument and citations to authority." (Moulton Niguel

Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.)

Discussion

Defendant seeks summary judgment or, alternatively,

summary adjudication of the first through fifth causes of action in the FAC.

First Cause of Action – Violation of Subdivision (d) of

Civil Code § 1793.2

"A plaintiff pursuing an action under the Act has the

burden to prove that (1) the vehicle had a nonconformity covered by the express

warranty that substantially impaired the use, value or safety of the vehicle

(the nonconformity element); (2) the vehicle was presented to an authorized

representative of the manufacturer of the vehicle for repair (the presentation

element); and (3) the manufacturer or his representative did not repair the

nonconformity after a reasonable number of repair attempts (the failure to

repair element)." (Oregel v. American Isuzu Motors, Inc. (2001) 90

Cal.App.4th 1094, 1101 [quoting Civ. Code § 1793.2] (“Oregel”).) “The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle after a reasonable number of attempts. Attempts is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.” (Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208 [internal quotations omitted, italics in original].)

The

FAC alleges, inter alia, that on or around August 16, 2020, Plaintiff purchased the Subject Vehicle. (FAC, ¶ 9.) “During Plaintiff’s ownership of the Subject Vehicle, the Subject Vehicle manifested defects covered by Defendant’s express written warranties. These defects include but are not limited to: exterior trim defects (Subject Vehicle’s ‘defects’). These defects substantially impair the use, value, and/or safety of the Subject Vehicle to Plaintiff.” (Id., ¶ 12.) Plaintiff alleges that: (1) he delivered the Subject Vehicle to Defendant and/or its authorized service and repair facilities for diagnosis and repair of the defects; and (2) Defendant and/or its authorized service and repair facilities failed to service or repair the Subject Vehicle to conform to the applicable express warranties after a reasonable number of opportunities.

(FAC, ¶¶ 13-14.)

Defendant

presents the following undisputed material facts: (1) Plaintiff purchased the Subject Vehicle on August 16, 2020. (Defendant's Separate Statement of Undisputed Material Facts (DSSF) 1.) Defendant issued a New Vehicle Limited Warranty covering the Subject Vehicle, which became effective on August 16, 2020. (DSSF 2.) Defendant's New Vehicle Limited Warranty provided bumper-to-bumper coverage for the earlier of 36 months or 36,000 miles and powertrain coverage for the earlier of 60 months or 60,000 miles. (DSSF 3.) Defendant's New Vehicle Limited Warranty advises consumers that use of its BBB Auto Line is required and provides contact information and Plaintiff has not alleged compliance with this requirement. (DSSF 4.) After purchasing the Subject Vehicle on August 16, 2020, Plaintiff presented it to GM-authorized dealerships on several occasions. (DSSF 5.) Only one of these visits concerned a warranty non-conformity under the Song-Beverly Act. (DSSF 5.)

Defendant

further presents the fact that, out of the nine visits to the GM authorized dealership, only the October 19-30, 2020 visit was related to warranty repairs on the moldings, hood, and emblems. (DSSF 6.) Plaintiff has not identified any visits beyond those in Defendant's undisputed material fact number six and

Plaintiff has not provided any additional information suggesting that other visits occurred. (DSSF 7.) The repair order related to Plaintiff's May 3, 2021 visit indicates that the work done was not warranty-related and was a dealership-paid visit. (DSSF 8-9.) Thus, the May 3, 2021 visit was not a warranty repair visit. (DSSF 10-11.) The August 2, 2021 visit was for recall-related repairs and was not a warranty repair visit. (DSSF 12-13.) Plaintiff's October 19-30, 2020 visit addressing the moldings, hood, and emblems was the only visit that involved warranty-related repairs, and such issues did not recur. (DSSF 14-15.)

The

Court finds that Defendant has met its burden in showing there is no triable issue of material fact as to the first cause of action. Defendant has shown that Plaintiff only presented the Subject Vehicle only once for a warranty concern. Thus, Defendant has shown that the cosmetic defects were resolved. Defendant has therefore shown that one element of the cause of action for violation of Civ. Code § 1793.2(d) cannot be established under *Oregel*, supra, 90 Cal.App.4th 1094, 1101. The burden now shifts to Plaintiff to show a triable issue of material fact.

As

stated above, Plaintiff has not provided any admissible evidence in support of the opposition. To defeat summary judgment, Plaintiff was required

to produce “substantial responsive evidence sufficient to establish a triable issue of fact.” (Hughes v. Farmers Ins. Exchange (2024) 107

Cal.App.5th 73, 82 [*italics in original*].) Plaintiff has failed to produce substantial responsive evidence. Plaintiff has not met his burden.

Thus,

summary judgment is proper as to the first cause of action.

Second Cause of Action – Violation of Civil Code §

1793.2(b)

“Where those service and repair facilities are maintained

in this state and service or repair of the goods is necessary because they do

not conform with the applicable express warranties, service and repair shall be

commenced within a reasonable time by the manufacturer or its representative in

this state.” (Civ. Code, § 1793.2, subd. (b).) “Unless the buyer agrees in

writing to the contrary, the goods shall be serviced or repaired so as to

conform to the applicable warranties within 30 days.” (Id.)

The Court

references its recitation of the undisputed material facts from above and

incorporates such recitation herein. Defendant has presented evidence that no

single “repair attempt . . . took longer than 30 days.” (Schick v. BMW of North America, LLC (2020) 801 Fed.Appx. 519, 521.) Thus,

Defendant has met its burden in showing that Plaintiff cannot establish a claim

for violation of Civ. Code § 1793.2(b). The burden now shifts to Plaintiff to

show a triable issue of material fact.

As stated above,

Plaintiff has not provided any admissible evidence in support of the opposition. Plaintiff has not met

his burden to show a triable issue of material fact.

Summary judgment

is therefore proper as to the second cause of action.

Third Cause of Action – Violation of Civ. Code § 1793.2(a)(3)

Every manufacturer of consumer goods who has issued an

express warranty must “[m]ake available to authorized service and repair

facilities sufficient service literature and replacement parts to effect

repairs during the express warranty period.” (Civ. Code, § 1793.2, subd.

(a)(3).)

The Court

references its recitation of the undisputed material facts from above and

incorporates such recitation herein. Based on the undisputed material facts

presented, the Court infers that the sole warranty repair for which the Subject

Vehicle was presented was completed and the issue did not recur. (Code Civ.

Proc., § 437c, subd. (c).) Thus,

Defendant has met its burden in showing that Plaintiff cannot establish a claim

for violation of Civ. Code § 1793.2(a)(3). The burden now shifts to Plaintiff

to show a triable issue of material fact.

As stated above,

Plaintiff has not provided any admissible evidence in support of the opposition. Plaintiff has not

presented any evidence to establish a triable issue of material fact.

Summary judgment

is therefore proper as to the third cause of action.

Fourth Cause of Action –

Breach of Implied Warranty

“In

California, an implied warranty of merchantability arises under the

Song-Beverly Consumer Warranty Act: Unless disclaimed in the manner prescribed

by this chapter, every sale of consumer goods that are sold at retail in this

state shall be accompanied by the manufacturer’s and the retail seller’s

implied warranty that the goods are merchantable.” (Isip v. Mercedes-Benz

USA, LLC (2007) 155 Cal.App.4th 19, 24 (“Isip”).) “[T]he implied

warranty of merchantability arises by operation of law and provides for a

minimum level of quality.” (Id. at p. 26 [internal quotations omitted].)

The implied warranty of merchantability guarantees that the goods: (1) pass

without objection in the trade under the contract description; (2) are fit for

the ordinary purposes for which such goods are used; (3) are adequately contained, packaged, and labeled; and (4) conform to the promises or affirmations of fact made on the container or label.” (Keegan v. American Honda Motor Co., Inc. (C.D. Cal. 2012) 838 F.Supp.2d 929, 945.) A vehicle “need not be perfect in every detail so long as it provides for a minimum level of quality.” (Ibid.) “[A] core test of merchantability is fitness for the ordinary purpose for which such goods are good.” (Brand v. Hyundai Motor America (2014) 226 Cal.App.4th 1538, 1546 (“Brand”) [internal quotations omitted].) “[T]he implied warranty ensures not simply a product substantially free from defects, but in particular that a vehicle . . . is in safe condition.” (Id. at p. 1547 [internal quotations omitted].)

Initially,

the Court finds that Plaintiff’s reliance on *Isip*, supra, 155

Cal.App.4th 19 is factually distinguishable as such action involved a vehicle

with, inter alia, a loud and knocking engine, transmission issues, and offensive

smells coming from the vehicle’s air conditioner. (*Isip*, supra,

155 Cal.App.4th 19, 22.) Brand is also factually distinguishable as Brand

involved a vehicle sunroof opening and closing at highway speeds. (Brand,

supra, 226 Cal.App.4th 1538, 1541.) Here, on the other hand, the issue

with the Subject Vehicle consists of cosmetic defects as to exterior trim.

(FAC, ¶ 12.) Plaintiff is informed that, on summary judgment, only the facts

alleged in the pleadings are relevant. (Champlin/GEI Wind Holdings, LLC v.

Avery (2023) 92 Cal.App.5th 218, 224.)

The Court references its recitation of the

undisputed material facts from above and incorporates such recitation herein. Based

on the undisputed material facts presented, the Court infers that the vehicle

was not unmerchantable and was drivable. (Civ. Proc., § 437c, subd. (c).) Thus,

Defendant has met its burden in showing that Plaintiff cannot establish a claim

for violation for breach of implied warranty of merchantability. Defendant has

shown that the Subject Vehicle "was fit for driving." (Keegan, supra, 838 F.Supp.2d 929, 945.) The burden now

shifts to Plaintiff to show a triable issue of material fact.

As stated above,

Plaintiff has not provided any admissible evidence in support of the opposition. Plaintiff therefore

has not shown a triable issue of material fact.

Summary judgment

is therefore proper as to the fourth cause of action.

Fifth

Cause of Action – Violation of the Magnuson-Moss Warranty Act

The

parties do not dispute that the fifth cause of action is premised on the

existence of a sufficient state law warranty claim. Given that the warranty

claims fail as stated above, the violation of the Magnuson-Moss Warranty Act

claim also “fall[s] with [Plaintiff’s] express and implied warranty claims

under state law.” (Clemens v. DaimlerChrysler Corp. (2008) 534 F.3d

1017, 1022.)

The

fifth cause of action therefore fails, and summary judgment is proper as to

such cause of action.

Based

on the foregoing, Defendant’s motion for summary judgment is GRANTED.

Defendant is ordered to give notice.